

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN NIGERIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Nigeria, grounded in the EIA Act, the regulatory agencies, the courts, and documented community struggles

This guide uses the Nigerian legal terms you will actually encounter (the EIA Act and its approval, NESREA and NOSDRA, the Federal High Court, fundamental-rights enforcement, the FOI Act, and so on), each explained in plain language where it first comes up. It describes the national framework; the 36 states and the FCT each have their own environmental laws and agencies too — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

A note on money. Budgets in this guide are in Nigerian naira (NGN). Every figure is indicative — Nigerian community campaigns range from near-zero (volunteer-run, pro-bono lawyers, free public data) to funded efforts that commission independent studies. Treat the ranges as a menu, not a bill.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Nigeria — and knowing which levers actually work matters more here than almost anywhere, because the formal system has real gaps. Nigeria's **Environmental Impact Assessment Act** (the EIA Act, No. 86 of 1992) requires assessment and public participation for major projects, but in practice participation is often opened late and briefly (assessment documents displayed for as little as two weeks), the Act provides **no administrative review** of the regulator's decisions, and enforcement is famously weak — projects proceed without proper assessment, and even court orders are sometimes ignored. So a community that relies only on the paper process will usually lose.

What Nigeria gives communities instead is a set of harder-edged tools that have delivered real results. The **courts have opened up**: in *Centre for Oil Pollution Watch (COPW) v. NNPC* (2019) the Supreme Court broadened **locus standi** (the right to sue) so that NGOs and public-spirited persons — not only directly injured individuals — can bring environmental cases in the public interest. The **Fundamental Rights (Enforcement Procedure) Rules 2009** make it possible to sue quickly to protect constitutional rights, and courts have tied the **right to a clean and healthy environment** to the rights to life and dignity — the *Gbemre v. Shell* (2005) case even held gas flaring unconstitutional. The **Freedom of**

Information Act 2011 compels public bodies to release records within seven days. And Nigeria has a deep tradition of **community mobilisation**, from the Niger Delta oil struggles to host-community organising, that has forced compensation, clean-ups, and redesigns.

Be clear-eyed. The system leans heavily toward powerful developers — especially in oil and gas, where the state is a joint-venture partner and revenue depends on production. Communities across Nigeria — fighting oil spills and gas flaring in the Delta, dredging and sand-mining, dumpsites and industrial estates, dams, and large real-estate reclamations — have organised anyway, and while outright stoppages are rare, compensation, clean-up orders, binding host-community terms, delay, and redesign are achievable.

What "winning" realistically means. Rarely a court order that permanently stops a project. More often: a proper EIA forced where one was skipped; compensation and clean-up for affected communities; binding host-community benefits and conditions; a project delayed until its economics change; regulatory enforcement action (NESREA/NOSDRA); or a redesign that removes the worst harm. Each has happened. The realistic goal is to make the project slow, costly, legally exposed, and politically visible — and to use the rights-based courts, the FOI Act, and community pressure that Nigeria actually responds to.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which agency decides, under which law, and when the decision becomes final.
2. **Documentation** — build an evidence record strong enough for public comment, regulators, and, if needed, the Federal High Court.
3. **Local opposition** — organise a durable community movement, because sustained pressure and community legitimacy are decisive in Nigeria.
4. **Legal challenges** — use participation and FOI, then fundamental-rights enforcement, public-interest litigation, and regulatory complaints.
5. **Media strategy** — generate coverage that raises the political and reputational cost of the project.

No single step wins alone. The combination — community pressure plus the rights-based courts, FOI, and regulatory complaints — is what works.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Nigeria's system is tilted toward powerful developers, participation is thin, and enforcement is weak. Assessing that honestly helps you choose the right tools: when the paper process is a formality, the **broadened public-interest standing, fundamental-rights suits, FOI, regulatory complaints (NESREA/NOSDRA), and community and media pressure** become the main routes — and courts have used them to declare conduct unlawful and order compensation and clean-up. A tilt changes which lever works; it does not remove them all. Section 10 deals honestly with tilted situations, including the real problem of court orders being disregarded and how to plan for it.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all which agency and law apply and your deadlines. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Nigeria is a federation: power over land and environment is shared between the **federal government**, the **36 states** (and the Federal Capital Territory), and **local government areas (LGAs)**. Many fights turn on the federal Ministry of Environment and its agencies, but the state and the community matter enormously — and in the oil regions, so do the oil companies and the federal oil institutions.

The levels of government — and what each one controls

The local government area (LGA) and the community. The LGA handles some local approvals and services, but in much of Nigeria the **community itself** — through traditional rulers, community development associations (CDAs), and host-community structures — is a real centre of authority and legitimacy. A project usually needs practical community acceptance, and community consent (or its absence) carries weight both politically and, increasingly, legally. In the oil sector, the **Petroleum Industry Act (PIA) 2021** creates formal **host-community** structures and development trusts, a distinctive lever.

The state. Each of the 36 states has its own **environmental protection laws and agency** (often replicating the federal Act with modifications), plus physical-planning and land-use control. The **state governor** and the state environmental agency issue many permits and set local standards; land in Nigeria is held under the **Land Use Act**, with the governor holding land in trust and controlling many land allocations — which makes state government central to land-based projects.

The federal government. The **Federal Ministry of Environment** administers the **EIA Act** and issues the **EIA approval** (the environmental clearance) for projects on the mandatory list. Its enforcement arm is **NESREA** (the National Environmental Standards and Regulations Enforcement Agency), the general environmental regulator; **NOSDRA** (the National Oil Spill Detection and Response Agency) handles oil spills; and in the petroleum sector the regulators and the state oil company (NNPC) are central. Sector ministries issue substantive approvals for large projects.

Which one is "yours"? Ask: which approval does this project actually need, and who issues it? A large project on the mandatory list needs a **federal EIA approval** from the Ministry of Environment; a factory, dumpsite, or dredging operation may need a **state environmental permit**; an oil-and-gas facility runs through the **federal petroleum regulators and NOSDRA**; and almost everything needs **land** under the governor's control and **community** acceptance. Pinning this down is Step 1, and it decides the deadlines, the agency, and which court and law apply.

How a decision is actually made — the journey of a project

For a project on the EIA mandatory list, the path is roughly:

1. **EIA report.** The proponent commissions and submits an **Environmental Impact Assessment report** to the Federal Ministry of Environment (or the state agency for state-level projects).
2. **Review and public display.** The Ministry reviews the report and puts it on **public display** for comments — but note the well-documented weakness: display is often brief (as little as two weeks) and late, after key decisions are effectively made. This is still your formal comment moment — use it, and document its inadequacy if it is thin.
3. **Panel/technical review.** A review panel and technical experts assess the report and any comments.
4. **The EIA approval (environmental clearance).** The Ministry issues an approval (a "certificate" / environmental clearance), with conditions, or asks for revisions. Unlike many countries, the EIA Act provides **no internal administrative appeal** — challenges go to court.
5. **The substantive permits and land.** The project also needs its sector permits, state approvals, land under the governor, and — in practice and increasingly in law — community/host-community arrangements. **These** are additional points of leverage and challenge.

Because the EIA process is thin and offers no administrative review, the **court, the FOI Act, regulatory complaints, and community pressure** carry more of the weight than the paper process itself.

The rulebook — the policies that decide the outcome

- **The EIA Act (1992).** Was an EIA required and actually done? Many projects proceed without one — a project that skipped or faked its EIA is legally exposed. Was public participation real, or a formality?
- **NESREA regulations and state environmental laws.** National environmental standards (air, water, effluent, noise, waste) and stricter or additional state rules. A project that cannot meet them is vulnerable.
- **Sector law.** The **Petroleum Industry Act 2021**, the **Oil Pipelines Act 2004**, the **NOSDRA Act 2006**, mining, water, and forestry law each add obligations and grounds — and the PIA's host-community provisions are a distinctive lever in oil areas.
- **The Constitution and the African Charter.** Section 20 of the 1999 Constitution makes environmental protection a state objective; the courts have linked a clean environment to the rights to **life and dignity** (enforceable via the Fundamental Rights Rules), and the **African Charter** (domesticated in Nigeria) grants a right to a general satisfactory environment — the basis of the landmark Ogoniland (SERAC) and Gbemre decisions.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Large projects bring investment and jobs; in oil and gas the

federal government is itself a joint-venture partner and depends on the revenue, which structurally aligns the state with producers; land is valuable and controlled by governors; and powerful developers have political weight. None of this is illegal, but it explains the strong lean toward approval and the weak enforcement — and why the community's best levers are the **rights-based courts, FOI-driven exposure, regulatory complaints, and organised community and host-community pressure**, rather than trust in the paper process.

The overseers — who watches the decision-makers

- **The Federal High Court.** The main forum for environmental and fundamental-rights cases against federal agencies and companies; state High Courts handle some matters. Since *COPW v. NNPC* (2019), NGOs and public-spirited persons have **broadened standing** to sue in the public interest.
- **NESREA and NOSDRA** — the environmental and oil-spill regulators, which can inspect, sanction, and order remediation (enforcement is uneven, but complaints create pressure and a record).
- **The National Human Rights Commission** — for rights violations linked to projects.
- **Anti-corruption bodies (EFCC, ICPC)** and the **Auditor-General** — for corruption and public money.
- **The National Assembly and state houses of assembly** — for oversight hearings and political pressure.

Naming the right body in a letter signals you understand the system, and involving the community's traditional and host-community structures early can shape a project's whole trajectory.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Nigerian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Nigeria sits inside the table: because the paper process is thin and enforcement is weak, the **rights-based courts, FOI exposure, regulatory complaints, and community/host-community pressure** usually carry more weight than the EIA process itself — and even a court win may need a follow-up enforcement fight.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (NGN)	What "Success" Means
Documentation only	5–10%	3–4 months	₦100,000–2,000,000	Project slowed; public better informed
Community opposition only	20–30%	6–18 months	₦200,000–5,000,000	Community pressure; host-community leverage
EIA comment only	5–15%	1–3 months	₦50,000–1,000,000	On record, but often a formality
Litigation only	15–25%	24–60 months	₦500,000–20,000,000	Slow; can declare conduct unlawful, but orders may be ignored
FOI + media only	10–20%	2–6 months	₦100,000–2,000,000	Exposure; reputational cost
Docs + community	30–40%	12–18 months	₦1,000,000–8,000,000	Pressure plus host-community terms
Community + litigation	35–45%	24–48 months	₦2,000,000–25,000,000	A rights case backed by real community weight
FOI + litigation + media	30–40%	18–48 months	₦1,500,000–20,000,000	Documented, litigated, publicised
All steps combined	45–60%	18–48 months	₦5,000,000–50,000,000	EIA forced, compensation/clean-up ordered, conditions won, delay/redesign, or project halted

Key insight: all steps together are several times more effective than any single one — and in Nigeria the mix that works leans on **community pressure + rights-based/public-interest litigation + FOI exposure + regulatory complaints**, not the EIA comment alone. Plan for the enforcement stage: a favourable judgment is sometimes the middle of the fight, not the end.

A note on legal cost: public comment, FOI requests, and regulatory complaints are free or low-cost. Litigation needs a

lawyer and carries filing and evidence costs — but the Fundamental Rights (Enforcement Procedure) Rules 2009 make rights suits relatively accessible, and public-interest environmental groups and clinics take some cases at reduced or no cost. The main unavoidable cost is good expert and monitoring evidence.

Effectiveness Visualization

SUCCESS PROBABILITY (EIA forced, compensation/clean-up or conditions won, project delayed/redesigned, or halted)	
WHERE INSTITUTIONS FUNCTION (a responsive state, a clean court process):	
All steps combined:	45–60%
Community + litigation:	35–45%
Docs + community:	30–40%
Single step:	5–30%
WHERE CAPTURE IS HEAVY (oil-sector JV, powerful developer, weak enforcement):	
All steps combined:	30–40%
Community + media:	20–30%
Public-interest suit:	15–25% (order may be ignored)
EIA comment alone:	3–12%
Single step:	2–10%

How to read this honestly. In Nigeria, winning a case is sometimes only half the battle — *Gbemre v. Shell* declared gas flaring unconstitutional, yet flaring continued, because enforcement of court orders against powerful actors is weak. So the strategy that works pairs the legal win with **sustained community, regulatory, media, and political pressure** to make the order stick. Even a "loss," or an unenforced win, that wins compensation, forces a clean-up, extracts host-community terms, or delays a project for years is a real outcome.

Step Importance Ranking (When All Combined)

1. **Community opposition** — organised, legitimate community pressure (and host-community leverage) is the engine, and what makes any legal or regulatory win stick.
2. **Litigation** — public-interest and fundamental-rights suits, now that standing is broadened, are Nigeria's sharpest formal tool.
3. **Documentation and FOI** — the raw material for the case, the complaint, the media, and the exposure of what agencies are hiding.
4. **Regulatory complaints (NESREA/NOSDRA)** — pressure and a record, even where enforcement is uneven.
5. **Media** — the amplifier that raises reputational and political cost.

Winning Nigerian campaigns combined a legitimate, organised community, a rigorous evidence file, a public-interest or rights-based case, FOI-driven exposure, regulatory complaints, and sustained media — and planned for the enforcement fight after any win.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farmland, creeks and rivers, mangrove, forest, fishing waters, sacred sites), and what the project would do to it. Obtain the proponent's **EIA report** — it is meant to be public during display, and it is where the proponent, on the record, describes the impacts and admits the residual ones. If it is being withheld or was never done, that itself is a powerful fact. List every admitted impact with its page reference.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) which body issues the **EIA approval** (the Federal Ministry of Environment for the mandatory list; the state agency for state projects); (b) which body issues the **substantive permits** (state environmental agency, sector regulator, the petroleum regulators/NOSDRA for oil and gas); (c) who controls the **land** (the state governor under the Land Use Act); and (d) the **community/host-community** structures whose acceptance the project needs. Name the officials,

the governor, and the traditional and community leaders — in Nigeria, community legitimacy is a decision-making factor, not a footnote.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: refusal or revocation of the EIA approval or a state permit; a court declaration that it is unlawful (no EIA, rights violation); a NESREA/NOSDRA enforcement action; withdrawal of community/host-community consent or land; compensation and clean-up orders; or political defeat. Map the points and aim at the ones Nigeria actually responds to — usually a mix of the courts, the regulators, and community leverage.

Question 4: When Is the Decision Final?

Diarrise: the **EIA public-display/comment window** (short — often about two weeks — so watch for it and act fast); the expected approval date; and, because there is **no administrative appeal**, the **court timelines**. Fundamental-rights suits under the 2009 Rules should be brought promptly; judicial-review and public-law challenges have their own time limits; and tort/compensation claims have limitation periods. Confirm the exact dates with a lawyer the moment an approval or harm occurs — Nigerian courts dismiss many cases on technical/timing grounds.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which companies and joint-venture partners are behind the project, whether land was allocated or acquired before the proposal, and whether any decision-maker has a tie to the developer. Use public sources — the **Corporate Affairs Commission (CAC)** company registry, land and survey records, asset declarations, **NEITI** extractive-transparency data for oil/gas/mining, and procurement records. Build a dated, sourced timeline. Keep it rigorous; Section 11 covers doing it safely.

Output of Step 1: a one-page fact sheet with the project's exact description, the approving and permitting bodies, the governor and community leaders, the specific act or lever to pursue, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a dredging-and-reclamation project is proposed on a creek your community fishes and farms. Working the questions: **Q1** — you demand the EIA report; either it admits loss of mangrove, fishing grounds, and flood buffering, or it was never properly done (itself a violation). **Q2** — a large reclamation needs a **federal EIA approval**, a **state environmental permit**, **land** under the governor, and **community acceptance**; if oil infrastructure is involved, NOSDRA and the petroleum regulators enter. **Q3** — the live levers are: FOI to force the documents; a **public-interest / fundamental-rights suit** at the Federal High Court (standing now broadened) if the EIA was skipped or rights are threatened; a **NESREA complaint**; and **community and host-community pressure** plus the governor's land control. **Q4** — you watch for the short display window, and once an approval issues or harm begins, you fix the court timelines with a lawyer immediately. **Q5** — the CAC registry shows who owns the developer and when the land was allocated. In an afternoon you know the open levers — and that the courts, FOI, the regulator, and community weight, not the thin EIA comment, are your strongest cards.

STEP 2: DOCUMENTATION

Documentation separates a campaign courts, regulators, and the public take seriously from one dismissed as agitation. In Nigeria it matters doubly, because courts often dismiss environmental cases on technical and evidentiary grounds — a rigorous, well-proved file is what survives a preliminary objection. Build three layers.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once dredging, clearing, or spilling begins, the "before" is gone. Start the day you learn of the project.

Water, land, and air. Record the current state of creeks, rivers, groundwater, farmland, mangrove, forest, and air, using any available NESREA/state-agency and NOSDRA data and your own dated photographs and simple measurements. In fishing and farming communities, the productivity of the water and land is both the livelihood and the legal baseline.

Livelihoods and community. Document who depends on the resource — fishers, farmers, traders — and how, plus homes, schools, health facilities, water sources, and sacred or communal sites. Nigerian environmental and compensation law, and the host-community provisions, all turn on concrete harm to people and their livelihoods, so a careful human and economic baseline is directly relevant.

Health. Record existing health conditions and the community's exposure, especially where oil, gas flaring, waste, or dust is involved. The rights-based cases (life, dignity, health) rest on this.

How to hold it. Keep everything dated, sourced, geo-referenced where possible, and backed up. In Nigeria, keep **witnessed, sworn statements (affidavits)** from community members where you can — courts weigh affidavit evidence heavily, and a case struck for want of an affidavit is a documented Nigerian failure mode. A well-organised baseline is more useful than a merely large one.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the proponent's **EIA report** (or its absence) — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the EIA itself concedes, with page references. Unarguable.
2. **A missing, late, or fake EIA** — if the project started before the EIA, or the display was a formality, or no EIA was done at all, that is a legal violation in itself and one of the strongest facts you can hold.
3. **Underestimated or omitted impacts** — downplayed spills, flaring, flooding, cumulative effects with existing facilities, and loss of fishing/farming productivity.
4. **Ignored participation** — where the community was not genuinely consulted, or consulted too late to matter.

Get expert eyes on it. A critique carries far more weight when a qualified professional — an environmental scientist, hydrologist, or physician — has reviewed and signed it, even pro bono. Universities, environmental NGOs, and citizens' science networks are sources of expertise. The goal is a written, evidence-backed critique a court and a regulator can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves communities, regulators, courts, and reporters. Document:

- **Health** — the specific risks (spills, flaring, dust, waste, water contamination) to the community, drawing on recognised standards and, where possible, a physician's assessment.
- **Economy and livelihoods** — lost fishing and farming income, damaged water sources, and the value of what is at stake, quantified. Compensation claims and host-community leverage both rest on this.
- **Community and place** — displacement, loss of communal land and sacred sites, and the strain on an already-burdened community (a resonant frame in the Delta and elsewhere).

Package this layer twice: a rigorous, affidavit-backed version for regulators, court, and compensation claims, and a plain-language one-page version for the community and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record before ground is broken or a spill spreads; collect affidavits early.
- **Phase 2: Impact (Months 2-3)** — dissect the EIA (or prove its absence); line up expert review before the short display window and any litigation.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data** — file comments and complaints on time with your best evidence; the display window is short.
- **No affidavits** — courts weigh sworn evidence heavily; unproven assertions get struck.
- **Only environmental data** — regulators and courts respond to health, livelihood, and rights arguments too. Breadth wins.
- **Ignoring the proponent's own admissions, or the missing EIA** — the EIA's concessions, or the fact that none was done, are your strongest facts.

Documentation Budget Breakdown (NGN)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering & photos	₦20,000–200,000	₦300,000–2,000,000
Expert technical report (water/health/environment)	₦0 (pro bono)	₦500,000–5,000,000
Independent sampling/measurement	₦50,000–500,000	₦500,000–3,000,000
Affidavits/notarisation & legal consultation	₦20,000–200,000	₦200,000–2,000,000
Printing/outreach materials	₦20,000–150,000	₦150,000–600,000

Much can be done at low cost with pro-bono experts, community affidavits, and free public data. Spend where a paid report materially strengthens a court case or a compensation claim — one solid report on the decisive issue (usually water, health, or lost livelihood) is worth more than five general ones.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records — you just have to force it open. This section is the shopping list; it also points you to the sources this map links.

Start at the Ministry of Environment, the state agency, and the community. In Nigeria the official documents for a project — the EIA report, the public-display notice, the approval and its conditions — are held by the **Federal Ministry of Environment** (or the state environmental agency), and are meant to be displayed publicly. In practice you often have to **use the FOI Act to get them**. Community and host-community structures, and the LGA, hold local records and knowledge too. Watch the Ministry's and agency's notices and websites, and ask the community leadership what they were shown and when.

The EIA report and approval. Get the EIA report during display, or by FOI request if it is withheld — and if none exists, document that.

Baseline environmental data. NESREA and state-agency monitoring; NOSDRA spill records and Joint Investigation Visit (JIV) reports for oil incidents; and your own dated sampling and photographs.

Ownership and money. Company ownership from the **Corporate Affairs Commission (CAC)**; land and allocation records from the state lands and survey offices; extractive-sector payments and licences from **NEITI**; and public-procurement records.

How to force a document open. A request under the **Freedom of Information Act 2011** compels a public institution to release records **within seven days**; refusal or silence is itself grounds for a Federal High Court suit (as gas-flaring campaigners have used). Use the wording in Section 8E — FOI is one of the most powerful low-cost tools you have.

Free and low-cost help. Environmental and human-rights groups litigate and advise, sometimes free — for example Environmental Rights Action / Friends of the Earth Nigeria, SERAP, Natural Justice, and university law clinics; the **Legal Aid Council** and the Nigerian Bar Association's public-interest lawyers assist some communities.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the community groups, legal-aid organisations, and watchdogs already working nearby. Pull that thread first, then follow it into the FOI requests and registries above.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Organised, legitimate community pressure is the single biggest factor in whether a Nigerian project is stopped or reshaped — and, crucially, it is what makes any legal or regulatory win actually stick in a system where court orders against powerful actors are often ignored. Nigeria has a deep tradition of community mobilisation: the Niger Delta struggles, host-community organising, women's protests that have shut down oil facilities, and the community development associations (CDAs) and traditional institutions that command local legitimacy. Build on that tradition.

Two principles carry special weight here: **legitimacy and unity** (a movement backed by the traditional rulers, the CDAs, women's and youth groups, and the churches/mosques is far harder to dismiss or divide — and developers routinely try to divide communities with selective payments, so a united, legitimate front is itself a strategic asset), and **durability** (a campaign that sustains pressure for a year or more, through the courts, the regulators, and public action, beats one that flares once and fades).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: One-on-one conversations. Start with the people most directly affected — fishers, farmers, and families whose land, water, health, or livelihood is at stake — and with the community's legitimate leaders. Personal conversations build a durable, trusted core. Listen first: concrete local losses (a fishing creek, a farm, a water source, children's health) motivate more than abstractions.

Step 1b: Engage the traditional and community institutions early. In Nigeria, the traditional ruler, the CDA, and the host-community structures are decisive. Secure their support early and formally — and be alert to the developer trying to buy them off. A community that speaks with one legitimate voice is far stronger.

Step 1c: Form a community group or committee. Create a named **community/environmental committee** with representatives, a simple treasury, and minuted meetings. This is the vehicle for comments, FOI requests, regulatory complaints, negotiating host-community terms, and organising claimants for a court case. Keep transparent accounts — it protects unity and credibility.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Community meeting. Hold a town-hall meeting to inform, unite, and recruit; bring the maps, the EIA's own admissions (or the fact that none exists), and the key deadlines. A visible, united community meeting also signals legitimacy to officials and the press.

Step 2b: Opposition materials. Simple, factual, sourced leaflets and messages (in the local language as well as English); lead with water, health, livelihood, and land stakes and the deadline. Include a simple model comment and FOI request so people can act.

Step 2c: Petition, comments, and FOI. A signature drive and mass comments during the (short) EIA display window; and a coordinated set of **FOI requests** to force out the documents. Many individual voices, plus the documents FOI shakes loose, build the record.

Step 2d: Media at launch. Time it to the display window and the first legal or regulatory step so coverage and action reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organisation outreach. Bring in national and regional environmental and human-rights organisations (several litigate these cases), the Nigerian Bar Association's public-interest lawyers, medical and academic experts, faith institutions, and — where relevant — other affected communities. Each adds credibility, reach, lawyers, and protection.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging clearly before disagreements arise. Who instructs the lawyer? Who negotiates host-community terms? Who speaks to the press? Who holds the funds? Settling this early prevents the divisions developers exploit.

Step 3c: Coordinated public work. Joint comments and FOI requests, joint regulatory complaints, shared experts and lawyers, shared costs, and a coordinated approach to the governor, the agencies, and the National Assembly.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Political and regulatory pressure. Lobby the state house of assembly and the National Assembly for oversight attention; press NESREA/NOSDRA to inspect and enforce; press the governor (who controls land) and the LGA. In the oil sector, use the PIA host-community structures. Sustained pressure on multiple bodies is what moves things when any single one stalls.

Step 4b: Public actions and media (ongoing). Lawful, peaceful public actions, community rallies, and steady media keep the issue alive and signal durability and unity. Feed the story new pegs — the FOI results, the court filing, a regulatory complaint, an expert report.

Step 4c: Prevent failure points. Movements fail when they are divided by selective payments, miss the short display window, rely on protest without a documented case, or collapse after a court win that is not enforced. Keep unity, hit deadlines, build the file, and plan for the enforcement stage after any win.

Worked example: a united community that makes a win stick

An oil-servicing facility is planned beside a creek three villages depend on for fishing and drinking water. A WhatsApp group of angry young men forms first — loud, but exactly what a developer knows how to split with a few "youth empowerment" payments. What converts it into durable force happens in the first weeks and is deliberately unglamorous. First, the organisers take the issue to the **traditional ruler and the community development associations** of all three villages and get a single, transparent decision-making structure — so no faction can be bought to manufacture "consent." Second, they **file FOI requests** for the EIA and approval, and discover none was properly done — a strong legal card they now hold. Third, they collect **sworn affidavits** from fishers and farmers about current catches and water use, before any harm, and get a university scientist to review the water baseline pro bono. Fourth, they bring in an **environmental NGO** that, thanks to the broadened standing in *COPW v. NNPC*, can litigate in the public interest. By the time work threatens to begin, the community can go to the Federal High Court with proof of a missing EIA, affidavit evidence, and a credible NGO — and, just as important, it is united enough that a favourable order cannot be quietly ignored, because three villages, an NGO, and the press are watching. The lesson generalises: **in Nigeria, the unity you build in month one — legitimate, transparent, and documented — is what wins the case in month twelve and enforces it in month twenty.**

Opposition Building Budget: Year-Long Campaign (NGN)

Highly variable. A lean, mostly-volunteer, community-run movement runs on **hundreds of thousands of naira** (meetings, printing, transport, communications). A campaign expecting litigation should budget for **expert reports and sampling (₦500,000–5,000,000)** and **legal costs (variable; public-interest and fundamental-rights cases can be run at reduced or no cost with the right partners, but a contested case with senior counsel runs into millions of naira)**. Nigerian campaigns typically fund the legal stage through **community contributions, diaspora support, and NGO/coalition backing**. Transparent accounts are essential — mismanaged funds and selective payments are the classic ways communities are split.

STEP 4: LEGAL CHALLENGES

Nigeria gives communities real legal tools, and the courts have opened up in recent years — but enforcement is the weak point, so litigation works best paired with community, regulatory, and media pressure. Three tracks — participation and FOI, rights-based and public-interest litigation, and regulatory complaints.

TRACK 1: PARTICIPATION AND FOI (the front door)

During the EIA display, file written **comments** on the EIA report — even though the window is short and often treated as a formality: - **It builds the record.** A comment ignored, or a display too brief to be meaningful, is a documented flaw you can put before a court. - **Aim at procedure and substance.** Strong points: no EIA (or one done after work began); inadequate or late public participation; ignored cumulative effects; and underestimated water, health, and livelihood impacts.

Alongside comment, use **FOI** aggressively: - **The Freedom of Information Act 2011** requires a public institution to release records **within seven days**. Use it to force out the EIA report, the approval and its conditions, monitoring data, and NOSDRA JIV reports. - **Refusal or silence is itself a cause of action.** Campaigners have sued the Ministry of Environment and oil agencies at the Federal High Court for failing to answer FOI requests on gas flaring — the suit itself creates pressure and precedent.

TRACK 2: RIGHTS-BASED AND PUBLIC-INTEREST LITIGATION (the sharpest tool)

Because the EIA Act gives **no administrative appeal**, the courts are the main route — and since 2019 they are more open:

- **Fundamental-rights enforcement (the 2009 Rules).** Sue at the **Federal High Court** (or a State High Court) to

enforce constitutional rights, arguing that the project threatens the rights to **life and dignity** through environmental harm, and the right to a **general satisfactory environment** under the domesticated **African Charter**. This is the route of *Gbemre v. Shell* (2005), where the court held gas flaring unconstitutional. The 2009 Rules liberalised standing and are designed to be relatively quick and accessible.

- **Public-interest litigation with broadened standing.** Since *Centre for Oil Pollution Watch v. NNPC* (2019), **NGOs and public-spirited persons can sue in the public interest** even without personal injury — a major opening. A credible environmental NGO can bring or join the case.
- **Judicial review / challenge to the approval.** Challenge an EIA approval granted without a proper assessment or process. Because there is no administrative appeal, this goes straight to court — mind the time limits.
- **Interim injunctions.** Ask the court to restrain works pending trial where irreversible harm is threatened; be aware that against powerful actors, obtaining and enforcing such orders can be hard.

TRACK 3: REGULATORY COMPLAINTS AND COMPENSATION

- **NESREA and NOSDRA complaints.** Formally complain to the environmental regulator (NESREA) or, for oil spills, NOSDRA — they can inspect, sanction, and order remediation. Enforcement is uneven, but a documented complaint creates pressure and a record you can later put before a court or the legislature.
- **Common-law compensation claims.** For damage already caused, sue the operator in **nuisance, negligence, trespass, or strict liability** (the *Rylands v. Fletcher* rule) for compensation — Nigerian courts have held operators liable for oil-spill damage. The Oil Pipelines Act and the PIA also provide compensation mechanisms.

The three legal challenge types

TYPE 1: FOI AND PARTICIPATION (fastest, cheapest, record-building)

Comment during display and force documents out under the FOI Act; refusal itself is suable. No standing problem, and it builds the file for everything else.

TYPE 2: RIGHTS-BASED / PUBLIC-INTEREST LITIGATION (the main court route)

Fundamental-rights enforcement (life, dignity, satisfactory environment) and public-interest suits with broadened standing, at the Federal High Court. Powerful, but plan for the enforcement fight.

TYPE 3: REGULATORY COMPLAINTS & COMPENSATION (pressure and redress)

NESREA/NOSDRA action and common-law compensation claims — pressure, a record, and money for those already harmed.

Legal Strategy Decision Tree

1. **Is the EIA report public / is the display window open?** → Comment now; FOI the documents; if withheld, prepare an FOI suit.
2. **Was the EIA skipped or is a right threatened (life, dignity, health, environment)?** → Prepare a **fundamental-rights / public-interest suit** at the Federal High Court (standing now broadened); seek an interim injunction if harm is imminent.
3. **Is a regulator relevant (pollution, oil spill)?** → File a **NESREA/NOSDRA complaint** in parallel.
4. **Harm already done?** → Bring a **compensation claim** in tort and pursue clean-up; keep pressing enforcement of any order.

Litigation Success Factors

A rigorous, affidavit-backed evidence file; the right vehicle (fundamental-rights Rules and public-interest standing); a credible NGO or public-interest lawyer; strict attention to court timelines and technicalities (on which Nigerian cases often turn); and — decisively — community, regulatory, and media pressure to make any win enforceable. Missing any one weakens the case.

What to Avoid: Legal Failures

Bringing a case without proper affidavit evidence (struck on a preliminary objection); missing the court timelines; treating a favourable judgment as the end rather than the start of enforcement; and litigating in isolation, without the community and regulatory pressure that makes an order bite.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often work in Nigeria — so you file the right fact against the right rule.

No EIA, or one done after work began → challenge to the approval / unlawful-conduct declaration. One of the strongest facts you can hold. Feed it with: proof of when work started versus when (or whether) the EIA was done, and the EIA Act's mandatory requirement.

Environmental harm threatening life, dignity, or a satisfactory environment → fundamental-rights suit (2009 Rules). The *Gbemre* route. Feed it with: the health and livelihood evidence, the affidavits, and the constitutional and African Charter rights.

Public-interest environmental harm, no personal injury → public-interest suit (broadened standing). Since *COPW v. NNPC*. Feed it with: the documented environmental damage, brought by an NGO or public-spirited person.

A withheld document / ignored FOI request → FOI suit. Feed it with: your dated FOI request and the agency's failure to answer within seven days.

An oil spill or pollution incident → NOSDRA/NESREA complaint + tort claim. Feed it with: the JIV report, your sampling, and the loss to fishing/farming, for both regulatory action and compensation.

Damage already suffered → compensation in nuisance/negligence/strict liability. Feed it with: the affidavit and expert evidence quantifying the loss.

The pattern: match one clean, well-proved fact to one clear ground, lead with the strongest (a missing EIA, a rights violation, an ignored FOI request), and always pair the legal claim with the community and regulatory pressure that makes a Nigerian win enforceable. A public-interest environmental group can tell you fast which ground is live.

STEP 5: MEDIA STRATEGY

Media rarely stops a project by itself, but it raises the reputational and political cost, protects the community, sustains momentum, reaches lawyers and allies, and — critically in Nigeria — helps make an unenforced court win or a stalled regulator move.

How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the EIA's own damning admissions (or the fact that none was done), a named fisher, farmer, or family whose livelihood or health is at stake, a clear deadline or incident, and a map or striking image (a spill, a cleared mangrove, a flare). Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a powerful-developer angle + a deadline or incident + a David-and-Goliath frame + a visual = coverage. Nigerian project and pollution stories — oil spills, gas flaring, dredging, dumpsites, land grabs — draw national and international attention on exactly this formula, especially in the Niger Delta and where health and livelihoods are visibly at stake.

Know the Outlets That Cover This Beat

Map the national newspapers and their environment/investigative desks, radio (which reaches communities directly and in local languages), regional and community stations, and international outlets and wire services that cover Nigerian oil and environment stories. Build a contact list with names and beats.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable community contact. One trusted relationship with an

investigative journalist beats a dozen press releases. Offer access — to the site, to affected families, to your experts and documents.

Why media matters even when it doesn't make the front page

Coverage does quieter work: it reaches a lawyer or an NGO that will take the case, an expert who reviews the EIA for free, a legislator who calls a hearing, and it creates a dated public record that protects the community and pressures a regulator or a company to comply with an order it would otherwise ignore. In Nigeria, sustained coverage is often what converts a paper win into a real one.

Sample Media Timeline

Launch with the display window or an incident; refresh at each milestone — the FOI results, the court filing, a regulatory complaint, an expert report, a hearing, any judgment. Each is a fresh news peg — and each keeps pressure on for enforcement.

Media Measurement

Track coverage, but measure what matters: whether the regulators and governor are responding, whether lawyers and allies come forward, whether the community stays united, and whether the company or agency is moving toward compliance, compensation, or withdrawal.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Submit important ones formally (with the agency's stamp/acknowledgement) and keep dated proof of anything you file — Nigerian cases often turn on proof of what was submitted and when.

8A. Email to a reporter (story pitch)

Subject: [Community/State]: community challenges [project] — documents attached

Dear [name],

A [project type] is proposed/underway at [location, state]. [The proponent's own EIA admits [specific admitted impact, quoted, with page number] / No EIA appears to have been done, though the law requires one.] The public-display window [closes on [date] / was only [X] days].

The host community, through **[community group / traditional council]**, is [filing comments / demanding documents under the FOI Act / preparing a case] and represents [number] families whose [fishing/farming/health] is at stake. "[Short human quote]," said [name, role].

I can connect you with affected residents and our experts, and arrange a site visit. Could we talk this week?

[Name] · [Group] · [phone] · [email]

8B. Letter to a decision-maker (Ministry / state agency / governor)

Subject: Request regarding [project] — [file/reference]

To [Honourable Minister / Director-General / Your Excellency the Governor]:

We write on behalf of [community/group] regarding [project] at [location]. We respectfully ask you to **[refuse/revoke the EIA approval / decline the state permit / withhold the land allocation / direct NESREA to inspect]** for the following reasons:

1. [Ground 1 — e.g. no proper EIA was conducted, contrary to the EIA Act.]
2. [Ground 2 — e.g. the project threatens the community's water and livelihood.]
3. [Ground 3 — e.g. public participation was inadequate/too late to be meaningful.]

We request a written response and a meeting. We are ready to provide the underlying evidence.

[Signatories, community/group, contact]

8C. Public comment on the EIA (during display)

Comment on the Environmental Impact Assessment for [project], displayed [date]

[Name / community group] submits the following within the display period: 1. **Adequacy of the EIA.** [The report omits/underestimates the impact on [water/fishing/health]; details attached.] [Or: no EIA appears to have been conducted, though the project is on the mandatory list.] 2. **Public participation.** [The display period of [X] days is too short and too late for meaningful participation, contrary to the purpose of the EIA Act.] 3. **Cumulative impact.** [This project, with the existing [facility], must be assessed together.] 4. **Mitigation.** [The proposed mitigation is inadequate for [specific impact].]

We request that the approval be [refused / withheld pending a proper EIA and genuine consultation].

[Date, name, contact; attach evidence and affidavits]

8D. Coalition outreach letter (to an NGO or lawyer)

Subject: Please support our community on [project] — [area/state]

Dear [organisation / counsel],

We are a host community facing [project] at [location], which threatens [water, fishing, farmland, health]. [No EIA was done / the EIA is gravely deficient], and [harm has begun / an approval is imminent]. We are gathering evidence and affidavits and wish to pursue [an FOI request and suit / a fundamental-rights or public-interest case / a NESREA/NOSDRA complaint].

Your [litigation capacity / expertise / standing] would strengthen the effort greatly. Since *COPW v. NNPC*, public-interest standing is available. Could we meet to discuss working together?

[Name, community/group, contact]

8E. Freedom of Information request (FOI Act 2011)

Subject: Request for information under the Freedom of Information Act 2011

To [Federal Ministry of Environment / NESREA / NOSDRA / state agency]:

Pursuant to the **Freedom of Information Act 2011**, we request copies of: 1. the Environmental Impact Assessment report and approval for [project]; 2. all conditions attached to the approval and any monitoring/compliance records; 3. [for oil incidents: the Joint Investigation Visit (JIV) reports and spill records for [site]]; 4. all correspondence between your agency and [proponent] concerning [project].

The Act requires a response **within seven days**. If access is denied, please state the specific legal basis. We reserve the right to apply to the Federal High Court to compel disclosure.

[Name/group, date, contact]

8F. Legal-action instruction to counsel (fundamental-rights / public-interest suit)

Subject: Proposed action at the Federal High Court regarding [project]

To [counsel]:

[Community/group / named applicants] intend to bring [a fundamental-rights enforcement action under the 2009 Rules / a public-interest suit] regarding [project], on the grounds that [no EIA was conducted / the project violates the rights to life, dignity, and a satisfactory environment / the FOI request was ignored]. We can provide: affidavits from affected residents, expert evidence on [water/health], and the documents obtained by FOI. Please advise on the appropriate reliefs, an interim injunction given the [imminent] harm, standing (noting *COPW v. NNPC*), the correct forum, and timelines.

[Date, signature]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

[Community] challenges [project] over [water/health/livelihood] threat

[Community group] today [submitted comments on / demanded documents under the FOI Act for / filed suit over] [project] at [location], citing [top two grounds]. "[Short, human quote from an affected resident]," said [name, role].

[The proponent's own EIA admits [quoted impact] / No EIA was conducted, though the law requires one.] The [approval/permit] rests with [authority]; [the display window closes on [date] / the matter is now before the Federal High Court].

Contact: [name, phone, email]. Photos, documents, and interviews available on request.

8H. Host-community / benefits and conditions demand (to the operator and government)

Subject: Demand regarding [project] — host-community rights, conditions, and remediation

To [operator] and [Ministry/state agency]:

We, the host community of [area], through [traditional council / community group], demand: a proper EIA and genuine consultation before any further work; [under the Petroleum Industry Act, the establishment and proper funding of the host-community development trust]; binding conditions including [monitoring, discharge limits, no-flaring, buffer zones]; remediation of [existing harm]; and fair compensation for [documented loss]. We request a meeting to negotiate, and we are documenting all impacts for the regulators and the courts.

[Community/group, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual documents and dates, and — for anything heading to court — have counsel experienced in environmental and fundamental-rights litigation review it. Timelines and technicalities are strict in Nigerian courts; keep stamped/acknowledged proof of everything you file, and use affidavits.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can organise a whole community or run a multi-year case. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. **File an FOI request (Section 8E).** The Freedom of Information Act 2011 forces a public body to release the EIA, the approval, and the monitoring or spill records **within seven days** — and if they refuse, that refusal is itself suable. This is the highest-value single act, because it breaks open the documents everything else needs.
2. **Comment during the EIA display — and document how short it was.** One page naming one or two concrete problems (no proper EIA; water, fishing, or health harm), plus a note of how brief/late the display was. It goes on the record.
3. **File a NESREA (or NOSDRA, for a spill) complaint.** Free, and it creates official pressure and a record.
4. **Alert the traditional ruler and CDA — and warn against selective payments.** A united, legitimate community is the strongest asset; divide-and-pay is the developer's main weapon.
5. **Send one accurate email to a journalist (Section 8A) and one to an environmental NGO (Section 8D).** A single story or a single NGO can bring lawyers, experts, and national attention.
6. **Collect a few sworn affidavits from affected residents now.** They cost little and are exactly what a court needs later — and evidence gathered before harm spreads is irreplaceable.
7. **Tell your neighbours the deadlines.** A united community with documents beats a lone objector.

Do only the first three and you've forced out the documents, put your objection on the record, and opened a regulatory front — a real contribution others can build on.

WHEN THE SYSTEM IS TILTED

Nigeria's system is tilted toward powerful developers, participation is thin, enforcement is weak, and — the hardest truth — even court orders are sometimes ignored. Being honest about this is how you pick the tools that actually work, and how you plan for the enforcement fight.

What This Tilt DOES (and DOESN'T DO)

The tilt makes the *paper process* weak (thin display, no administrative appeal) and makes *enforcement* unreliable (regulators under-resourced or captured; orders against big companies disregarded). It does **not** close the doors: the courts have **broadened standing** and enforced **fundamental rights**; the **FOI Act** forces disclosure; **regulatory complaints** build pressure and records; **community and host-community leverage** is real; and **media and legislative attention** can move an actor the law alone cannot. The key is to combine them and to plan, from the start, for making any win stick.

Reading Your Tilt: Functioning, Mixed, Captured

- **Relatively functioning.** A responsive state agency, a governor open to the community. Here, comment, FOI, regulatory complaints, and negotiation do real work.
- **Mixed.** An agency that follows the powerful but is sensitive to exposure. Weight shifts to FOI-driven exposure, litigation, media, and united community pressure.
- **Heavily captured (classically, the oil-JV context).** The federal government is a partner to the producer, and enforcement is weakest. Assume the paper process and even a court order may not be honoured; prepare **public-interest and rights litigation, relentless FOI and media exposure, international attention, and sustained, united community pressure**. Even here, communities have won compensation, clean-ups, and global scrutiny.

Documented Nigerian Dynamics

The record shows both the wall and the way through. *Gbemre v. Shell* (2005) declared gas flaring unconstitutional — and it continued, the classic example of an unenforced win, which is why pressure must outlast the judgment. But *COPW v. NNPC* (2019) broadened standing so NGOs can sue in the public interest; the Ogoniland/SERAC findings and the later clean-up commitments show international and legal pressure forcing action; and Niger Delta communities have repeatedly forced compensation and shutdowns through organised, united pressure. The lesson: **litigate, but never rely on the order alone — make it stick with community, regulatory, media, and international force.**

Assessment Framework — Determine Your Situation

Ask: Was an EIA even done (its absence is a strong card)? Is a powerful oil/JV or political actor behind the project (expect capture and weak enforcement)? Is the community united, or being split by payments? Can you reach a credible NGO and national/international media? The answers tell you how heavily to weight litigation versus exposure and pressure — usually all of them, with enforcement planned in advance.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Nigerian communities have used protest, occupation of facilities, and demonstrations, alongside legal and regulatory routes; women's protests have shut down oil operations. Public protest carries real legal and physical risk in Nigeria, and the security response can be severe. This guide notes such tactics exist and have mattered historically; it does not advise breaking the law. Know your rights, stay peaceful, prioritise safety above all, avoid giving authorities a pretext, and get legal advice before anything that could carry risk. The community's unity, legitimacy, and safety are assets worth protecting.

Honest Assessment

Tilted fights are hard and many are lost, and Nigeria's enforcement gap is real. But "hard" is not "hopeless" — public-interest and rights litigation, FOI exposure, regulatory complaints, and united community pressure have forced EIAs, compensation, clean-ups, host-community terms, delay, and global scrutiny. Even an unenforced win or an ultimate loss often buys documentation, compensation, international attention, and an organised community. Concentrate force where the tilt is weakest — disclosure, the rights-based courts, and the legitimacy of a united community — and plan from day one to make any win enforceable.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real in Nigeria, and it looks different in each institution. Read your situation actor by actor — the type of capture changes which lever works, and sometimes tells you a lever is closed. Handle this carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

LGA and community-level actors. The most common pressure point: selective payments to a traditional ruler, a youth leader, or a faction to manufacture "community consent." Signs: sudden endorsements, a divided community, payments that bypass proper structures. Lever: unity and legitimacy — a well-run, transparent community process that exposes divide-and-pay for what it is, and documents who was really consulted.

State officials and the governor's land control. Land under the Land Use Act is controlled by the governor, which makes land allocations a classic site of capture. Signs: land quietly allocated before a project is public, revoked community rights, opaque deals. Lever: land and allocation records, FOI, the courts, and the anti-corruption bodies.

The environmental regulators (NESREA/NOSDRA) and the Ministry. Capture here is usually soft — under-resourcing, pressure not to enforce against powerful producers, reliance on the operator's own data (notably operator-led JIVs for spills). Signs: an approval that ignores obvious harm, a JIV that blames sabotage for a corrosion spill, enforcement that never comes. Lever: FOI, independent evidence, public-interest litigation, and legislative and media pressure.

The developers and oil operators. Watch for land grabbed before a project is public, shell arrangements, hospitality and revolving-door ties to officials, and the manufacturing of consent. The CAC registry, land records, and **NEITI** extractive-transparency data surface the money trail a journalist or the EFCC needs.

The courts. Nigeria's courts have shown real independence and judicial activism (*Gbemre, COPW*), which is why litigation is a genuine lever — but cases are often lost on technicalities, delays are long, and **orders against powerful actors may not be enforced**. Treat the enforcement gap as a structural problem to plan around (with pressure and exposure), and mind the technical rules that sink unprepared cases.

Federal politicians and the oil-revenue interest. Where a project serves federal revenue or a powerful patron, expect the whole chain to lean toward it. That is capture of a kind; the honest path is the rights-based courts, FOI exposure, and united community and international pressure.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the **EFCC** and **ICPC** for corruption, the **Auditor-General** and **NEITI** for public money and extractive flows, the courts for unlawful conduct — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject and divide the community.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over a campaign that typically spans a year or more (and litigation, if it comes, much longer — and enforcement longer still). Here is how they fit onto one timeline.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — project, approving/permitting bodies, governor, community leaders, applicable law, the lever to pursue, every deadline. - Engage the traditional rulers, CDA, and host-community structures; form the community committee and guard against divide-and-pay. - Begin baseline documentation (Step 2, Layer 1) and collect affidavits before harm spreads. - **File FOI requests immediately** to force out the EIA, approval, and monitoring/spill records.

Months 2-3 (Launch). - Comment during any EIA display window and document its inadequacy (Step 4, Track 1). - Hold the community meeting; launch factual materials in local languages (Steps 3 & 5). - File NESREA/NOSDRA complaints where relevant. - Complete the EIA critique (or prove its absence) with expert help (Step 2, Layer 2). - Launch media timed to the FOI results and first legal/regulatory step.

Months 3-6 (Expansion). - Build the coalition — bring in environmental and human-rights NGOs, public-interest lawyers,

experts, faith institutions (Step 3, Phase 3). - Finish the health/economic analysis and compensation groundwork (Step 2, Layer 3). - Prepare the **fundamental-rights / public-interest case** (standing broadened since *COPW*); seek an interim injunction if harm is imminent (Step 4, Track 2). - Sustain media and begin legislative and gubernatorial pressure.

Months 6-12 (Pressure, Litigation & Enforcement). - File and run the court case; pursue FOI suits for any withheld documents. - Escalate regulatory, legislative, gubernatorial, and (where warranted) international pressure (Step 3, Phase 4). - **Plan for enforcement from the start** — line up the community, regulatory, and media pressure that will make any favourable order actually bite.

Beyond 12 months. - Litigation and appeals can run years; enforcement of a win can be a separate campaign. - Pursue compensation and clean-up; monitor compliance with any conditions or order. - Keep the community united and the file alive; the organisation and evidence are assets for the next fight.

Warning Signs — Act Early

An EIA display notice appears (short window — comment and FOI now); work begins with no visible EIA (a strong legal card — document it immediately); land is quietly allocated; selective payments start circulating in the community; a spill or clearing begins. Early action beats late reaction — and forcing out documents and collecting affidavits early is far stronger than scrambling after harm spreads.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: keep the community united and legitimate against divide-and-pay; force out documents with FOI; document rigorously with affidavits; use the broadened-standing and rights-based courts; file regulatory complaints; sustain media and political pressure; and **plan for enforcement so a win becomes real**. Losing campaigns: get divided by payments; miss the short display window; litigate without proper evidence or on the wrong technicalities; treat a judgment as the finish line; or rely on the paper process alone.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Nigeria takes several forms, and it is worth naming them so you recognise a win when you get one: - a **proper EIA and genuine consultation forced** where they were skipped; - an **EIA approval refused or withheld**, or a state permit or land allocation declined; - a **court declaration** that the project or conduct is unlawful, or a **rights** violation found (as in *Gbemre*); - **compensation and a clean-up** for affected communities, and enforced **remediation**; - binding **host-community terms and conditions** (including under the PIA); - a project **delayed for years**, or **redesigned** to remove the worst harm; - or, at minimum, a **documented, organised, internationally-visible** community that raises the cost of proceeding.

Nigerian communities have achieved each — usually through united community pressure plus the rights-based courts, FOI exposure, and regulatory complaints, and by fighting on after any win to make it stick.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If you have a strong card — a missing EIA, a clear rights violation, an ignored FOI request — and a credible NGO or lawyer, litigation may be well worth it. If a win is unenforced, the fight shifts to enforcement pressure, not surrender. If every avenue is exhausted, redirect to compensation, clean-up monitoring, the next permit stage, or the next election. Continuing is not always right; neither is quitting at the first technical setback — many Nigerian wins came on appeal after an early loss.

The Bottom Line

Nigeria's system leans hard toward powerful developers, its EIA process is thin, its enforcement is weak, and even court orders are sometimes ignored — but it hands communities a distinctive and strengthening set of levers: a **Freedom of Information Act** that forces disclosure in seven days; courts that have **broadened standing** and enforced the **rights to life, dignity, and a satisfactory environment**; regulators to complain to; host-community rights under the PIA; common-law compensation; and a deep tradition of united community mobilisation. Communities that stay united against divide-and-pay, force out the documents, document rigorously with affidavits, use the rights-based and public-interest

courts, complain to the regulators, sustain media and political pressure, and plan from the start to make any win enforceable have forced EIAs, won compensation and clean-ups, extracted host-community terms, delayed and reshaped projects, and drawn global scrutiny — and can again. No single step wins; the combination does, and the fight often continues past the judgment. Start today by forcing out the documents, uniting the community, and finding your deadlines.